

**JUSTIFICATION FOR EXCEPTION TO FAIR OPPORTUNITY
FOR A MULTIPLE AWARD CONTRACT ORDER (MAC)
Above the Simplified Acquisition Threshold (SAT)**

1. **IDENTIFICATION OF AGENCY AND CONTRACTING ACTIVITY:** This is a Limited Source Justification. The requiring activity is the Naval Air Station (NAS) Patuxent River Base Communications Office (BCO). The contracting activity is Naval Air Warfare Center Aircraft Division (NAWCAD) Patuxent River, MD.

2. **NATURE/DESCRIPTION OF CONTRACT ACTION:** This acquisition is conducted under the authority of 10 U.S.C. 3406(c)(5). This is a limited source action to be awarded as a new task order under the Department of Defense (DOD) Wireless Services MAC (Spiral 4 Indefinite Delivery Indefinite Quantify (IDIQ) MAC) to the Large Business, Celco Partnership, doing business as Verizon Wireless, hereinafter referred to as Verizon Wireless for continued service plans. The Government anticipates the placement of a **firm, fixed price order.**

3. **DESCRIPTION OF REQUIRED SUPPLIES/SERVICES:** The proposed acquisition is needed for uninterrupted continuous support of current wireless mobility services for mobility infrastructure for approximately 10,000 service plans for both local and nationwide Cellphones, Smartphones, Tablets, mobile Wi-Fis (MIFIs) and peripheral accessories to maintain essential communication service to customers of the NAS Patuxent River BCO, most of whom are providing various types of fleet support.

This task order will have a one (1) year Period of Performance (PoP) beginning 30 March 2025 to be awarded under the NAVSUP Fleet Logistics Center San Diego (NAVSUP FLC San Diego) Spiral 4 IDIQ MAC. The award will be made to Verizon Wireless with an estimated value of

4. **IDENTIFICATION OF THE JUSTIFICATION RATIONALE AND/OR DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:** The statutory authority which permits not providing each awardee a fair opportunity to be considered for each order exceeding \$10,000 issued under a multiple award contract is 10 U.S.C. 3406(c)(5), as implemented by FAR 16.505(b)(2) and, for orders exceeding \$250,000, DFARS 216.505-70(b)(2).

(a) Describe in detail reason for purchasing and why it is beneficial to the Navy.

Wireless mobility service provides support for the Warfighter and support personnel at Naval Air Station (NAS) Patuxent River, MD, NAWCAD Webster Outlying Field (WOLF) at St. Inigoes, MD, Joint Base Dix-McGwire Air Force Base, Lakehurst, NJ, and Marine Corps Air Station Cherry Point, NC and deployed locations across the contiguous US and worldwide.

To accomplish NAVAIR's mission, service, reliability, and availability must be met and maintained in state and territorial areas to include those that are densely populated, remotely populated, and unpopulated. Wireless connectivity is a key communication capability of the Warfighter and NAWCAD support personnel and disruption of that capability could lead to loss of mission or life. Verizon Wireless has a proven record of reliability for these requirements due

to the infrastructure it has built over the course of the existing contract.

(b) Reasons for not providing a fair opportunity to all awardees:

(i) need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays;

Without the current infrastructure, wireless signal strength would be severely and negatively impacted. In addition, the current infrastructure created by Verizon Wireless, to include an additional tower at NAS Patuxent River as well as Multiple Small Cell Antennas and IBS Repeaters on base could take approximately one (1) to four (4) years, depending on the carrier's approach for infrastructure to include tower location and utilization, to recreate what already exists.

Two towers are currently operational at NAS Patuxent River, MD: a primary tower served by Verizon, AT&T, and T-Mobile and a second tower erected and solely used by Verizon to boost service in the SouthEast corridor. The secondary tower associated with Verizon Wireless is currently owned and only utilized by Verizon, which greatly contributes to reliable service. For another wireless carrier to erect a comparable tower to provide the same level of service, it could take up to two (2) years if a new tower was erected off base. Additionally, it could take up to four (4) years if a new tower were proposed to be erected on base.

Loss of service for any amount of time would negatively impact base personnel causing service degradation throughout approximately 60 buildings on both Patuxent River, NAS and Webster Field until a new infrastructure is in place, causing an immeasurable loss of productivity. Additionally, the transition to cellphones has allowed for a decrease of 7,000 landline phones over the last four (4) years, all of which have transitioned to cell phone devices. The resultant cost if service degradation resulted in the re-installation of landline phones would be approximately \$500,000.

During the course of the current contract, Verizon Wireless also installed four (4) small cell antennas to fill gaps in coverage and improve signal strength for requirements outside of buildings, which ensures Command personnel are able to maintain wireless capabilities while traveling or working throughout the base. Verizon Wireless provided approximately 30 eFemto's (small repeaters) for use in smaller buildings. Each device supports up to 60 users and allows full functionality to those personnel.

With a new carrier, Multiple Small Cell Antennas and IBS Repeaters on campus would take one (1) to two (2) years to replace, affecting service for 20 buildings at NAS Patuxent River, 20 buildings at Webster Field, and six (6) buildings at Joint Base Dix-McGwire AFB. NAS Patuxent River has another 25 buildings that utilize a non-engineered repeater solution that would take approximately one (1) to three (3) months to replace to ensure both Federal Communications Commission (FCC) and carrier signal degradation standards were met.

At the time of award for the current task order, approximately 2,500 devices were in use. Currently 7,000 devices are in use and the new task order is anticipated to provide service for a total of 10,000 devices. The increase in devices can be attributed to increasing demands for flexibility and mobility in the workplace. Verizon Wireless has been able to provision not only

the service but additional infrastructure to support the increase in the number of devices on the network at any given time. Other carriers may be able to provide the same capabilities, but not in the time frame necessary to maintain continuity of service because of the existing infrastructure Verizon Wireless has been able to create and maintain.

It is critical that wireless service at the locations previously mentioned have the same level of service or better on day one of the follow-on task order. Due to the Government's increased dependence on wireless services, any lapse of service due to lack of infrastructure would be catastrophic and severely impact the Command by reducing or eliminating wireless capabilities resulting in effectively eradicating communication altogether for some personnel. The follow-on task order is required to be in place on 30 March 2025, therefore a carrier transition at this time is not feasible. However, given more time, another provider may be capable of completing this requirement. As such, the Government fully intends to compete the follow-on requirement to this one-year task order among all seven Spiral 4 MAC contract holders.

5. DETERMINATION OF THE BEST VALUE:

The Spiral 4 IDIQ Multiple Award Contract established prices inclusive of discounts, for the provided service to be considered fair and reasonable. The NAWCAD Contracting Officer will determine, using the procedures in FAR 16.505 and historical acquisition information, that the order represents the best value to meet the Government's needs. The contractor will be required to submit a proposal for this effort with sufficient information to support the accuracy and reliability of the estimate.

6. DESCRIPTION OF MARKET RESEARCH: The requiring activity and contracting activity have conducted market research among the multiple award contractors.

The Government provided the seven (7) NAVSUP Fleet Logistics Center San Diego (NAVSUP FLC San Diego) Spiral 4 IDIQ Multiple Award Contract (MAC) contractors with the draft Statement of Work for this requirement and requested that a capability statement be returned in order for the Government to conduct proper market research. Two (2) companies responded with capability statements. The Government recognizes that one contractor, AT&T Corporation, may be able to complete this requirement if a longer transition period were possible in order for the company to re-build the existing infrastructure. The other company that responded to the Government's market research request, WidePoint Integrated Solutions Corporation (WidePoint), could also potentially complete this requirement. However, in order to make a determination, the Government would need greater insight as to how WidePoint's partnership with other carriers is structured in order to understand wireless routing, service quality levels, and how troubles are isolated and resolved. The Government would also need to understand how WidePoint intends to resolve lack of coverage inside designated buildings/areas and deployment solutions, especially given their partnership with multiple carriers.

The Government responded to all interested parties who submitted capability statements to inform them that although they may be capable of providing service on a future task order, the Government was unable to determine if the carriers could meet the required level of service in the timeframe of this procurement. Interested Spiral 4 contract holders were also notified that the Government intends to begin the process of hosting site visits and conducting signal strength studies within the next two months.

Current market research indicates that at least one (1) other company may be technically capable of performing the requirement, if they were able to have the time to match or exceed the current infrastructure. However, it is very difficult and almost immeasurable to capture the impact and cost to the Command if current In-Building Repeaters and tower services are lost in totality during a carrier transition. It is estimated that it would take one (1) to four (4) years and millions of dollars for a new carrier to duplicate the existing infrastructure that is currently in use supporting the current wireless task order. Should a new cellular provider be able to utilize some or all components of the current infrastructure the transition time could possibly be less than one (1) year.

The intention of a one (1) year PoP on this task order is to allow all interested Spiral 4 MAC contractors to work with the Government and possibly the current service provider Verizon Wireless, to determine the necessary steps in re-creating or improving the current infrastructure to avoid any gaps in wireless service on the start date of the next follow-on task order. Having a shorter PoP on this follow-on task order will allow for competition among Spiral 4 MAC contractors on future follow-on task orders.

The requiring activity certified that the requirement can be met by a commercial item and provided the supporting documentation.

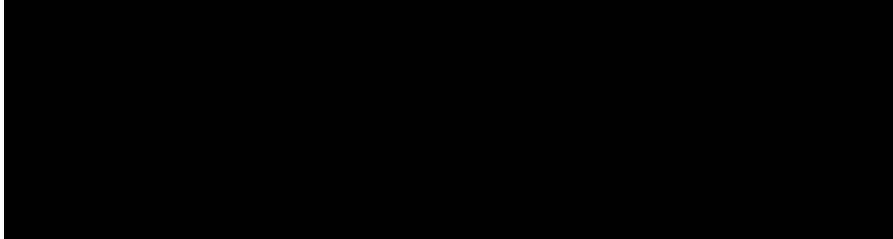
7. **ANY OTHER SUPPORTING FACTS:** This procurement uses a MAC and will be solicited and awarded in accordance with FAR Subpart 16.5.
8. **ACTIONS TAKEN TO REMOVE BARRIERS TO COMPETITION:** All future requirements will be handled on a case-by-case basis. The intention of the one (1) year PoP on this Task Order is to allow all interested Spiral 4 MAC contractors to work with the Government via site visits and signal testing to determine the necessary steps in re-creating or improving the current infrastructure to avoid any gaps in wireless service on the start date of the next follow-on task order. Having a shorter PoP on this follow-on task order will allow for potential competition among Spiral 4 MAC contractors on future follow-on task orders.
9. **CONTRACTING OFFICE POINT OF CONTACT:** The point of contact is:
Contracting Office: **Naval Air Warfare Center Aircraft Division (NAWCAD)**
Name: **Lauren Farmer**
Telephone Number: [REDACTED]
E-Mail Address: lauren.m.farmer.civ@us.navy.mil

CERTIFICATIONS AND APPROVAL

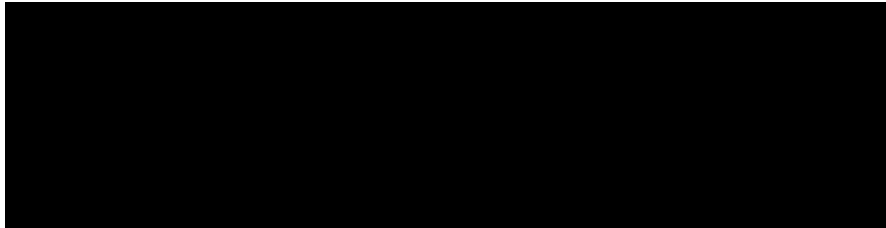
TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

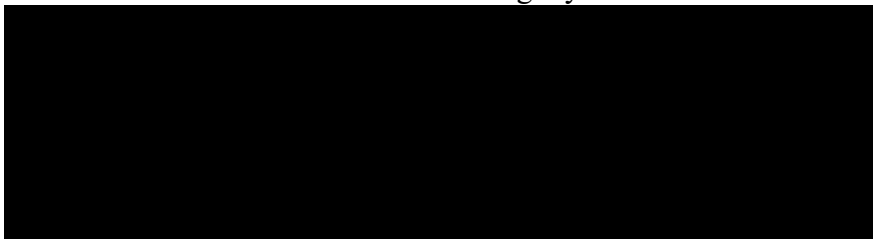


Requirements Cognizance:



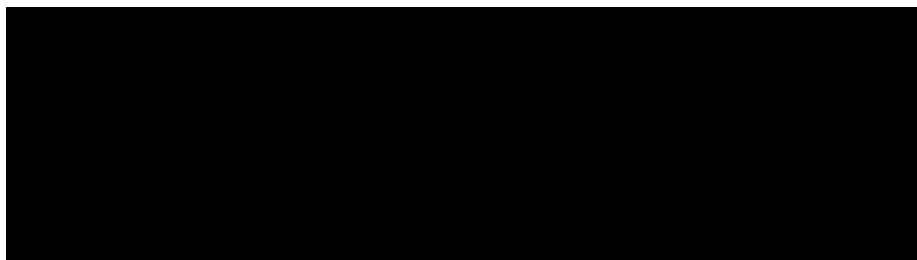
LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.



CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.



APPROVAL

Upon the basis of the above justification, I hereby approve the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of FAR 16.505(a)(4), The requirement is for an item peculiar to one manufacturer.

